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CASE #	CASE NAME	HEARING NAME
CVRI2204867	JONES vs WANHOO LLC.	MOTION FOR ISSUE EVIDENCE OR TERMINATING SANCTIONS (X7)

Tentative Ruling:

Deny Plaintiffs' request for judicial notice.

Deny Defendant's motions for sanctions against Maegan for failure to comply with the Court's orders re: FROGs and SROGs, without prejudice. Defendant filed its motion for sanctions on July 6, 2026, but the court did not issue its orders to compel Maegan to serve further verified responses to FROGs and SROGs until July 8, 2026. The motions are premature as to Maegan.

Deny Defendant's motions for issue, evidentiary, and terminating sanctions against Jeremy in full. While Jeremy has failed to comply with the court's orders of May 1, 11, 13, and 22, 2026 (by interposing objections and by failing to answer all FROGs and SROGs ordered by the court), terminating, evidentiary and issue sanctions are premature and overly harsh. Terminating sanctions are premature because Plaintiffs have violated only one set of court orders, and the evidence shows that such violation was due to counsel's confusion regarding the applicable court order rather than willfulness. Plaintiffs' further supplemental responses dated September 3, 2026, still fail to comply with the Court's orders as they do not address every request or interrogatory. Lesser sanctions short of dismissal or default are appropriate here.

Defendant is awarded sanctions of \$630 against Plaintiff's counsel (total, for all motions), payable to Defense counsel within 30 days.

Continue both motions to have the Requests for Admissions Deemed Admitted to October 29, 2026, at 8:30am, D-4.

Defendant argues for the first time in its Reply brief that Plaintiffs' most recent supplemental responses to RFAs, served on August 18, 2026, improperly amended several responses from "Admit" to "Deny" without obtaining leave of Court under CCP § 2033.300. Here, however, this new claim did not exist at the time the initial motions were filed, as Plaintiffs served the supplemental responses at issue after Defendant filed its motions to deem the RFAs admitted, but before the hearing on the motions.

Plaintiffs to file a sur-reply addressing the new claims and the supplemental responses of August 18, 2026. The sur-reply to be filed by October 21, 2026.